

TENTATIVE RULING

Gabriel Cantellano Garcia v. Salinas Valley Fair, Inc. et al. (26CV001911)

Defendant Salinas Valley Fair, Inc.’s Motion for Judgement on the Pleadings

By this motion, Defendant Salinas Valley Fair, Inc. (the “Fair”) seeks judgment on the pleadings on Plaintiff’s sole cause of action against it for premises liability. The motion is made on the basis that, pursuant to the *Privette* doctrine, the Fair, as a hirer, cannot be held liable for injury to the Plaintiff, as an employee of the Fair’s contractor.

The motion is GRANTED with leave to amend; Plaintiff has 10 days from service of this order to file an amended complaint.

Plaintiff Garcia alleges that he was injured while assembling an amusement ride in the course and scope of his employment for Defendant Butler Family Fun, Inc. (“Butler”). Plaintiff alleges that the Fair contracted with Butler to bring the amusement ride to its fair, and that the injury occurred on Fair property.

Pursuant to the *Privette* doctrine, a landowner who hires a contractor to do a job is not liable for injuries suffered by the contractor’s employees unless either: (1) the hirer failed to disclose a preexisting hazardous condition on its property; or (2) the hirer retained control over the instrumentality of the injury. (*Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 37–38.)

The above two exceptions to the *Privette* doctrine are foreclosed by the allegations of the complaint. The only hazardous condition alleged – exposed controls on the amusement ride during assembly – were not preexisting on the Fair’s property and were instead brought to the property by Defendant Butler. Likewise, as alleged, the Fair did not retain control over the instrumentality of injury – the amusement ride – which it never controlled to begin with. Based on the allegations of the complaint the Fair contracted with Butler to “bring” the amusement ride to the Fair, and Plaintiff was injured while conducting the assembly of that ride in the course and scope of his employment for Butler. Under California law and the facts alleged, the Fair presumptively delegated tort duties of safety in assembly of the rides to Butler. (*SeaBright Ins. Co. v. US Airways, Inc.* (2011) 52 Cal.4th 590, 601-603.) Accordingly, the Fair is liable for Plaintiff’s injuries as a matter of law and should be granted judgment on the pleadings.

The Plaintiff may have an opportunity to amend the complaint, and any amended complaint must be filed within 10 days of the date of service of this order.

Defendant Salinas Valley Fair, Inc, is to prepare the court’s order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court’s order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.